

25STCV32270 25STCV32270

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-06

Motion: PLAINTIFF'S REQUEST FOR DEFAULT JUDGMENT

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Case Number: 25STCV32270 Hearing Date: August 6, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

ANNESSA

DURAN,

Plaintiff,

vs.

3531 TRUCKING, a corporation; and DOES 1 to 30, inclusive,

Defendants.

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CASE

NO.: 25STCV32270

[TENTATIVE] ORDER RE: PLAINTIFF'S
REQUEST FOR DEFAULT JUDGMENT

Dept. 733

8:30 a.m.

August 6, 2026

I.

INTRODUCTION

This is a
wage-and-hour action.

On

November 4, 2025, Plaintiff Annessa Duran ("Plaintiff") filed a complaint against Defendant 3531 Trucking ("Defendant"), alleging causes of action for (1) Failure to Pay Minimum and Overtime Wages (Lab. Code §§ 1194, 1197, 510, 218.6) (2) Wage Statement Violations (Lab. Code § 226) (3) Waiting Time Penalties (Lab. Code §§ 201– 203) (4) Willful Misclassification (Lab. Code §§ 226.8, 2775 et seq.) (5) Failure to Reimburse Business Expenses (Lab. Code § 2802) (6) Meal and Rest Break Violations (Lab. Code §§ 226.7, 512) (7) Retaliation and Wrongful Termination (Lab. Code §§ 98.6, 1102.5, 6310) (8) Unfair Competition (Bus. & Prof. Code §§ 17200 et seq.) (9) Intentional Infliction of Emotional Distress (10) Joint Employer Liability (Labor Code § 2810.3) (11) Fraudulent Inducement to Accept or Continue Employment (Labor Code

§§ 970–972; Common Law Fraud) (12) Negligent Hiring, Supervision, and Retention.

On

February 9, 2026, Plaintiff added 3531 Dispatch, Inc. as DOE 1; 3531 Trucking LLC as DOE 2; 3531 Trucking CA, Inc. as DOE 3; Miguel Miranda as DOE 4; and Peter Cruz as DOE 5.

On

March 3, 2026, the Court Clerk entered default as to Defendant.

On

March 3, 2026, Plaintiff filed a Request for Entry of Default Judgment.

II.

LEGAL STANDARD

Code of Civil

Procedure section 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a proposed form of judgment; (6) a dismissal of all parties against whom judgment is not sought; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court Rule 3.1800.)

III.

DISCUSSION

SUBMITTED: CRC

3.1800

1.

Use

of JC Form CIV-100 Yes

2.

Dismissal or judgment of non-parties to the judgment No

3.

Declaration

of non-military status for each defendant Yes

4.

Summary

of the case No

5.

585(d)

declarations/admissible evidence in support Yes

6.

Exhibits (as necessary) No

7.

Interest computation (as necessary) N/A

8.

Cost memorandum Yes

9.

Request for attorney fees (Local Rule 3.214) Yes

Damages Summary:

Damages

\$ 201,060.00

Interest

\$ 0

Attorneys' fees

\$ 11,000.00

Costs

\$ 798.14

TOTAL

\$ 212,858.14

Other relief requested

Plaintiff seeks a default judgment in the amount of \$212,858.14, which includes \$151,060.00 in special damages, \$50,000.00 in general damages, \$798.14 in costs and \$11,000.00 in attorney's fees.

Plaintiff

has provided a cost memorandum as to the incurred costs, which includes \$498.14 for Clerk's filing fees and \$300.00 for Service of Process. This totals \$798.14.

However, the Court finds that there are deficiencies with the Plaintiff's default package.

For any damages claimed, "Plaintiffs in a default judgment proceeding must prove they are entitled to the damages claimed.' [Citation]." (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 288.) "[T]he plaintiff must affirmatively establish his entitlement to the specific judgment requested." (Id. at p. 287.)

Plaintiff's counsel solely declares that the request for special damages "[i]ncludes unpaid minimum and overtime wages, meal and rest break premium pay, statutory penalties, unreimbursed business expenses, and double damages"; and the request for general damages includes "[c]ompensation for emotional distress, mental anguish, anxiety, and related noneconomic harm resulting from Defendants' retaliatory conduct and wrongful termination." (Pittman III,

Decl., ¶ 5.) This is simply not sufficient evidence to support the damages award. The Court must consider the evidence and render judgment in Plaintiffs' favor for the amount justified by the evidence, but not exceeding the amount stated in the complaint or statement of damages. (Code Civ. Proc., § 585(b), § 585(c) [when defendant is served by publication]. "Plaintiffs in a default judgment proceeding must prove they are entitled to the damages claimed." (Barragan v. Banco BCH (1986) 188 Cal.App.3d 283, 302; see Uva v. Evans (1978) 83 Cal.App.3d 356, 363 [a defendant in default may appeal a default judgment on the grounds that a damages award "(1) 'is so disproportionate to the evidence as to suggest that the verdict was the result of passion, prejudice or corruption' [and] (2) 'is so out of proportion to the evidence that it shocks the conscience of the appellate court'"].)

As for attorney's fees, Plaintiff requests \$11,000.00 in fees pursuant to Labor Code § 1194(a); Labor Code § 218.5(a); Labor Code § 1102.5(j) and Code of Civil Procedure § 1021.5. (Id. ¶ 14, Ex. 4.) However, amount of fees requested is not correctly calculated from the fee schedule found in the Local Rules rule 3.214(a).

Lastly, Plaintiff has not provided the necessary documents per California Rules of Court Rule 3.1800(A), specifically a summary of the case. Plaintiff has also not filed a dismissal of all parties against whom judgment is not sought.

IV.

CONCLUSION

Thus, Plaintiff's
Request for Default Judgment is DENIED.

Dated this 6th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court